DATED 12TH JUNE 2019

THE COUNCIL OF THE CITY OF SALFORD

– and –

LOWRY OUTLET LIMITED

AGREEMENT

pursuant to section 106 of the Town and Country Planning Act 1990 (as amended) relating to the Lowry Outlet, The Quays, Salford

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City Solicitor
Salford City Council
P O Box 532
Town Hall
Albert Square
Manchester M60 2LA

L/JGH/OUT1105/604

THIS AGREEMENT is made the 12TH day of JUNE 2019

BETWEEN:

(1) **THE COUNCIL OF THE CITY OF SALFORD** of Salford Civic Centre, Chorley Road, Swinton, Manchester M27 5DA (the **"Council"**), and

(2) **LOWRY OUTLET LIMITED** (incorporated in England and Wales with company number 10610137) whose registered office is at Peel Dome, IntuTrafford Centre, Traffordcity, Manchester M17 8PL (the **"Owner"**)

BACKGROUND

A The Council is the local planning authority for the purposes of the Act in relation to the Site and is the authority by whom the obligations hereby created are enforceable The Development will be carried out on the Site The Site is situated within the Administrative Boundaries of Salford and this planning obligation is enforceable by the Council

B The Owner is the leasehold owner of the Lowry Designer Outlet registered at the Land Registry with Title Absolute under Title Number GM829624 which includes that part of the Site shaded blue on the Plan together with but subject to all matters contained or referred to in the Title Register thereunder

D The Council is the freehold owner of those parts of the Site not shaded blue on the Plan registered at the Land Registry with Title Absolute under Title Number GM718575 together with but subject to all matters contained or referred to in the Title Register thereunder The Council is not entering into the planning obligations contained in Schedule 3

E The Application was submitted to the Council for planning permission to carry out the Development in the manner set out in the plans, specifications and particulars forming part of the Application

F The Council as local planning authority is satisfied that the Development is such as may be approved by the Council under the Act and is minded to grant planning permission for the Development in accordance with the Application but having considered the saved policies of the UDP the SPD and the Regulations and all other material considerations is desirous of the Owner entering into this Agreement without which planning permission would not be granted

G The Owner has agreed to enter into this Agreement in support of the Application so as to create planning obligations in favour of the Council pursuant to section 106 of the Act and to be bound by and observe and perform the covenants hereinafter contained

H The planning purpose of this Agreement is to improve the amenity of land in the locality of the Site with benefit for the occupiers of the Development and to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations The Council is satisfied that the obligations in this Agreement are,

(a) necessary to make the Development acceptable in planning terms (including where appropriate, obligations necessary to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations),

(b) directly related to the Development, and

(c) fairly and reasonably related in scale and kind to the Development

OR

(d) will secure other planning benefits

AGREED TERMS

DEFINITIONS AND INTERPRETATION

1 1 The definitions and rules of interpretation set out in this clause apply to this Agreement

"Act" the Town and Country Planning Act 1990 as amended by the Planning and Compensation Act 1991 and the Planning and Compulsory Purchase Act 2004 and the Planning Act 2008,

"Administrative Boundaries of Salford" all the wards that together comprise the city of Salford,

"Agreement" this agreement,

"Application" the application to which the Council gave the reference 18/72343/FUL for planning permission for alterations and improvements to existing outlet mall including extension by 587 sq m gross, use of new and change of use of existing floorspace to a flexible Class A1 and A3 Use, external alterations and refurbishment of the elevations to deliver enhanced waterside units, extension and widening of public walkway at first floor level to link with the Millennium Bridge, new public entrance, works to the public realm and landscaping improvements and other associated engineering works,

"Commencement of Development" the date upon which the Development shall begin by the carrying out of a material operation in accordance with the provisions of section 56(4) of the Act PROVIDED THAT any works of or associated with site clearance, remediation works, environmental or archaeological investigations, site and soil surveys, erections of contractors work compound, erection of site office, erection of fencing to site boundaries, marking of site boundaries and laying out of access roads and services shall for the purposes of the agreement be deemed not to be material operations and **"Commence"**, **"Commencement"** and **"Commenced"** shall be construed accordingly,

"Contributions" means the Planting Contribution and the Grille Contribution payable by the Owner to the Council as set out in Schedule 3

"Development" the development undertaken on the Site pursuant to the Planning Permission as specified in the Application,

"Director" the Council's Strategic Director Place or such other officer of the Council as may from time to time be nominated in writing to act in place of the Council's Strategic Director Place,

"Expert" a professional expert in town planning, who is a Chartered Member of the Royal Town Planning Institute with a minimum of ten (10) years post-qualification experience,

"Interest" interest at 4% (four per cent) above the base lending rate of the Bank of England from time to time,

"NPPF" the National Planning Policy Framework issued in February 2019 being the framework setting out the Government's planning policies for England and how these are expected to be applied as may be amended or any replacement of the same,

"Plan" the plan referenced 433/LOM-CTA-XX-00-DR-A-07001-03 attached to the Agreement,

"Planning Permission" the planning permission granted pursuant to the Application substantially in the form as appended at Schedule 2 and as may be amended by any non material amendment,

"Regulations" the Community Infrastructure Levy Regulations 2010,

"Site" the property described in Schedule 1 and shown for the purposes of identification only edged red and shaded blue on the Plan,

"SPD" the City of Salford Council's Supplementary Planning Document entitled "Planning Obligations" (adopted 18 June 2015),

"UDP" the City of Salford Unitary Development Plan 2004-2016 (adopted 21 June 2006),

"Working Day" means any day except Saturday Sunday or a bank holiday and reference to "Working Days" shall be construed accordingly

1 2 The clause headings do not affect this interpretation

1 3 Unless otherwise indicated, references to clauses and Schedules are to clauses of and Schedules to this Agreement and references in a Schedule to a Part or Paragraph are to a Part or Paragraph of that Schedule

1 4 References to any statute or statutory provision include reference to

1 4 1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation, and

1 4 2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision

1 5 References to the Site include any part of it

1 6 References to any party in this Agreement include the successors in title of that party In addition, references to the Council include any successor local planning authority exercising planning

powers under the Act and any successor local highway authority exercising powers under the Highways Act 1980

1 7 **"Including"** means **"including, without limitation"**

1 8 Any covenant by the Owner or the Council not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing

1 9 If any provision is held to be illegal, invalid or unenforceable, the legality, validity and enforceability of the remainder of this Agreement is to be unaffected

1 10 Words importing the singular meaning where the context so admits include the plural meaning and vice versa

1 11 Words of the masculine gender include the feminine and neuter genders and words denoting actual persons include companies, corporations and firms and all such words shall be construed interchangeable in that manner

2 PLANNING OBLIGATION

This Agreement is made pursuant to section 106 of the Act, section 111 of the Local Government Act 1972, section 1 of the Localism Act 2011 and all other enabling legislation and is a planning obligation for the purposes of section 106 of the Act, with the intent that covenants hereinafter contained shall be enforceable by the Council acting under the powers contained in section 106 or such other enabling powers against the Owner

3 CONDITION PRECEDENT

3 1 This Agreement is conditional upon the grant of the Planning Permission save for the provisions of this clause and clauses 2, 7, , 10, 11, 12, 13, 14, 16 and 17 which shall have immediate effect

4 CONDITION SUBSEQUENT

If the Planning Permission for the Development has not been implemented by the carrying out of a material operation in accordance with the provisions of sections 56, 91 and 93 of the Act or is revoked or modified in whole or in part (other than in approval of an application by or on behalf of the Owner) or quashed or declared unlawful as a result of legal proceedings then this Agreement shall subject to the Council complying with paragraph 5 of Schedule 4 absolutely determine and become null and void but without prejudice to the rights of either party against the other in respect of any antecedent breach

5 THE OWNER'S COVENANTS

5 1 The Owner hereby covenants with the Council to fully observe and perform the obligations on its part contained in this Agreement and to pay to the Council on the date of this Agreement the Contributions set out in Schedule 3 such obligations being planning obligations for the purpose of section 106 of the Act

6 **THE COUNCIL'S COVENANTS**

The Council hereby covenants with the Owner to observe and perform the obligations on its part in this Agreement including those obligations set out in the Schedule 4

7 **DISPUTE RESOLUTION**

7 1 In the event of any dispute arising in connection with any of the terms of this Agreement other than a dispute involving the construction or interpretation of the terms of this Agreement or the enforcement of any decision pursuant to this clause, the same shall unless the Council and the Owner otherwise agree be referred to an Expert to be appointed by agreement between the Council and the Owner

7 2 If the Council and the Owner are unable to agree on the appointment of an Expert within thirty (30) days of one party serving notice on the other calling for the appointment of an Expert, then an Expert shall be appointed on the application of either party to the President for the time being of the Royal Town Planning Institute

7 3 Any reference of a dispute to an Expert shall if the parties are agreed in writing be deemed to be a reference to an expert (and not to an arbitrator) whose decision shall be final and binding (save for manifest error) but shall otherwise be deemed to be a reference to an arbitrator pursuant to the Arbitration Act 1996 and any statutory amendment variation substitution or re-enactment thereof

7 4 Any party to this Agreement shall be entitled to submit to the Expert representations and cross-representations with such supporting evidence as they shall respectively consider necessary and the Expert shall have regard thereto in making his decision which shall be delivered in writing The reference of any dispute shall include authority to determine in what manner all the costs of the referral shall be paid

8 **WAIVER**

No waiver (whether expressed or implied) by the Council of any breach or default in performing or observing any of the covenants terms or conditions of this Agreement shall constitute a continuing waiver and no such waiver shall prevent the Council from enforcing any of the relevant terms or conditions or from acting upon any subsequent breach or default

9 **COUNCIL'S CONSENT OR APPROVAL**

Where in this Agreement the consent, agreement or approval of the Council is required to be given by the Council, the Council confirms that such consent, agreement or approval shall not be unreasonably withheld or delayed provided that this shall not fetter the proper discretion of the Council

10 **LOCAL LAND CHARGE**

This Agreement is a Local Land Charge and shall be registered as such by the Council

11 **NON-PROHIBITION ON DEVELOPMENT**

Nothing in this Agreement shall prohibit or limit the right to develop any part of the Site in accordance with a planning permission (other than the Planning Permission granted (whether or not on appeal)) after the date of this Agreement

12 **THIRD PARTY RIGHTS**

Save as provided in respect of the successors in title to that part of the Site shaded blue or any successor to the relevant statutory functions of the Council this Agreement shall not be enforceable by any third party pursuant to the Contracts (Rights of Third Parties) Act 1999 and no third party shall acquire any benefit rights or claims whatsoever pursuant thereto

13 **COMMUNICATION**

13 1 Any notice or document to be served on or sent pursuant to this Agreement shall either be delivered personally or sent by recorded delivery service

13 1 1 to the Council and addressed to the Director at the Council's address first above written,

13 1 2 to the Owner ~~and the Mortgagee respectively~~ at their last known address~~es~~,

or as otherwise specified by the relevant party by notice in writing to each other party

14 **FEES**

14 1 The Owner shall pay forthwith to the Council its legal fees reasonably and properly incurred in preparation of this agreement,

14 2 Receipt by the Council of the payment of such sum shall not create any lawyer-client type contractual relationship between the Council and the Owner nor absolve the Owner from any liability or obligation imposed upon them by the terms of this Agreement or by statute or at common law,

15 **INTEREST**

If any payment due under this Agreement is paid late Interest will be payable from the date payment is due to the date that payment is received

16 **JURISDICTION**

This Agreement is governed by and interpreted in accordance with the law of England

17 **COMPLETION**

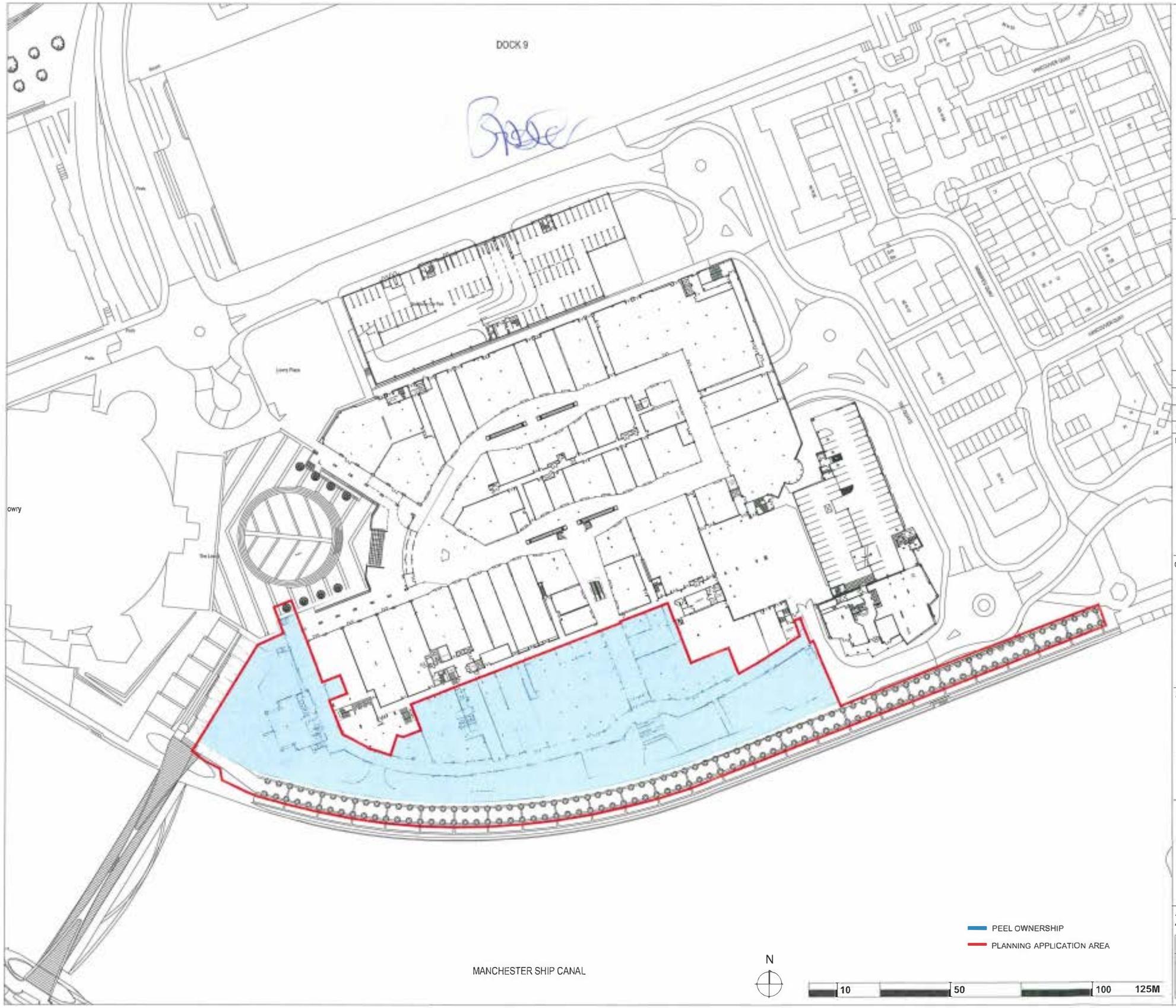
The provisions of this Agreement (other than this clause which shall be of immediate effect) shall be of no effect until this Agreement has been dated

EXECUTED as a deed by the parties on the day and year first hereinbefore appearing

SCHEDULE 1

The Site

Land at The Lowry Outlet, The Quays, Salford and shown for the purposes of identification only edged red and shaded blue on the Plan



NOTES

This drawing must not be scaled. Use figured dimensions.

All dimensions are to be verified and checked on site. Any discrepancies that are, or become apparent should be reported to Chapman Taylor.

Areas indicated are approximate gross internal area. they relate to the likely areas of the building at the current stage of design. any decisions to be made on the basis of these predictions, whether as to project liability, pre-letting, lease agreements, or the like, should include due allowance for the increases and decreases inherent in the design development and building process.

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REV	DATE	INI'L	DESCRIPTION	CHK
03	07.03.19	LC	REVISED PLANNING ISSUE - S106	MD
02	30.11.18	ES	REVISED PLANNING ISSUE	MD
01	AUG18	DH	PLANNING ISSUE	MD

PROJECT

LIFESTYLE OUTLET MANCHESTER

MediaCityUK
Manchester
M50 3AH

CLIENT

PEEL OUTLETS

Lifestyle Outlets Office, T2 Quay Plaza
MediaCityUK
Manchester
M50 3BA

ARCHITECT

CHAPMAN TAYLOR
GLOBAL ARCHITECTS & MASTERPLANNERS

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DRAWING TITLE

SOUTHERN WATERSIDE WORKS
SITE LOCATION PLAN
AS EXISTING

JOB NUMBER	SCALE	DRAWN BY	FIRST ISSUE
433/LOM	1:1250@A3	LC	AUGUST 2018

FOR PLANNING

PROJECT NUMBER	ORIGINATOR	ZONE	LEVEL	TYPE	ROLE	NUMBER	REVISION
433/LOM	CTA	XX	00	DR	A	07001	03

SCHEDULE 2

Draft Planning Permission

THE COUNCIL OF THE CITY OF SALFORD
CIVIC CENTRE
CHORLEY ROAD
SWINTON, M27 5BW

TOWN AND COUNTRY PLANNING ACT 1990

DECISION NOTICE : GRANT

PLANNING PERMISSION 18/72343/FUL

Date of Decision: SIGNED

Date of Issue: On behalf of the Council

Applicant:

Lowry Outlet Limited
c/o Mrs Heather Lindley-Clapp
WYG
Quay West at MediaCityUK
Trafford Wharf Road
Trafford Park
Salford
M17 1HH

Part 1 – Particulars of Application: **Date of Application:** 25 August 2018

Location of development:
Lowry Outlet
The Quays
Salford
M50 3UB

Particulars of development:
Alterations and improvements to existing outlet mall including extension by 587 sq.m gross, use of new and change of use of existing floorspace to a flexible Class A1 and A3 Use, external alterations and refurbishment of the elevations to deliver enhanced waterside units, extension and widening of public walkway at first floor level to link with the Millennium Bridge, new public entrance, works to the public realm and landscaping improvements and other associated engineering works

Part 2 – Particulars of Decision:

The Council of the City of Salford hereby gives notice in pursuance of the provisions of the Town and Country Planning Act 1990 that **permission has been granted** for the carrying out of the development referred to in Part 1 hereof in accordance with the application and plans submitted subject to the following condition(s):

1. The development must be begun not later than three years beginning with the date of this permission.

   Reason: Required to be imposed by Section 91 of the Town and Country Planning Act 1990 (as amended).

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2. The development hereby permitted shall be carried out in accordance with the following approved plans:

Location Plan - 433/LOM CTA XX 00 DR A 07001 02
Proposed Undercroft Parking Floor Plan - 433/LOM CTM XX UC DR A 07050 02
Proposed Upper Mall Floor Plan - 433/LOM CTM XX UM DR A 07052 02
Proposed Upper Mall (inc T4) Floor Plan - 433/LOM CTM XX B1 DR A 07053 02
Proposed T1 Level Floor Plan - 433/LOM CTM XX B1 DR A 07057 02
Proposed Lower Mall Floor Plan - 433/LOM CTM XX LM DR A 07051 02
Proposed T2 Level Floor Plan - 433/LOM CTM XX T2 DR A 07058 02
Proposed T3 Level Floor Plan - 433/LOM CTM XX T3 DR A 07059 02
Proposed T4 Level Floor Plan - 433/LOM CTM XX T4 DR A 07060 02
Proposed South Elevation - 433/LOM CTM XX XX DR A 07054 02
Proposed South Elevation (G34-G27) - 433/LOM CTM XX XX DR A 07055 02
Proposed South Elevation (G35) - 433/LOM CTM XX XX DR A 07056 02
Proposed North and South Elevation - 433/LOM CTM XX XX DR A 07061 02
Proposed West and East Elevation - 433/LOM CTM XX XX DR A 07062 02
Proposed F and B Unit Section - 433/LOM CTM XX XX DR A 07063 02
Proposed Waterside Substation - 433/LOM CTM XX XX DR A 07070 02
Landscape General Arrangement - P10905-00-001-100 Rev 12
Landscape General Arrangement Units T1/T2 - P10905-00-001-101 Rev 10
Landscape General Arrangement Arrival Steps - P10905-00-001-102 Rev 11

Reason: For the avoidance of doubt and in the interest of proper planning.

3. Notwithstanding any description of materials in the application no above ground construction works shall take place until samples or full details of materials to be used externally on the building(s) have been submitted to and approved in writing by the Local Planning Authority. Such details shall include the type, colour and texture of the materials. Only the materials so approved shall be used, in accordance with any terms of such approval.

Reason: In order to ensure a satisfactory appearance in the interests of visual amenity in accordance with Policy DES1 of the City of Salford Unitary Development Plan and the requirements of the National Planning Policy Framework.

4. a) Notwithstanding the details shown on the approved plans, no above ground development shall commence until full details of public realm / hard landscaping and soft landscaping works have been submitted to and approved in writing by the Local Planning Authority. The details shall include:

i. the formation of any banks, terraces or other earthworks;
ii. reinstatement of tree pits to footway;
iii. the results of a feasibility study concerning incorporating Sustainable Urban Drainage Systems;
iv. hard surfaced areas and materials;
v. boundary treatments;
vi. external lighting;
vii. planting plans/specifications and schedules (including planting size, species and numbers/densities);
viii. existing plantse/ trees to be retained; and,
ix. a scheme for the timinge/ phasing of implementation works.

(b) the approved landscaping works shall be carried out in accordance with the approved scheme for timing / phasing of implementation and any recommendations from the feasibility study implemented.

(c) Any trees or shrubs planted or retained in accordance with this condition which are removed, uprooted, destroyed, die or become severely damaged or become seriously diseased within 5 years of planting shall be replaced within the next planting season by trees or shrubs of similar size and species to those originally required to be planted, unless the Local Planning Authority gives its consent in writing to any variation.

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Reason: To ensure that the site is satisfactorily landscaped having regard to its location and the nature of the proposed development and in accordance with Policies DES1, DES9 and E19 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

5. No development shall commence until a full specification concerning tree protective fencing, which is in accordance with the provisions of British Standard 5837(2012) Trees in relation to design, demolition and construction, has been submitted to and approved in writing by the Local Planning Authority. The approved fencing shall be installed in accordance with the approved details prior to the commencement of development and retained for the full duration of the works.

No equipment, machinery or materials shall be used, stored or burnt within any protected area. Ground levels within these areas shall not be altered, nor any excavations undertaken including the provision of any underground services, without the prior written approval of the Local Planning Authority.

Reason: To ensure the continuity of the amenity afforded by the existing trees and protection of the root systems in accordance with policies EN12 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: Development prior to the installation of the protective fencing could damage/kill the trees to be retained.

6. No development shall commence until an Arboricultural Method Statement (AMS) has been submitted and agreed in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved AMS.

No works or development shall commence until a written arboricultural method statement for a tree care plan during construction in accordance with British Standard 5837 (2012) Trees in relation to design, demolition and construction. has been submitted to and approved in writing by the Local Planning Authority. This should include details of access, scaffolding, storage, contractors parking, service runs and changes in levels. Works or development shall then be carried out in accordance with the approved method statement.

Reason: To ensure the protection and preservation of the trees during construction works, in accordance with policies EN12 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: Development prior to an AMS being submitted and agreed could lead to irreversible damage to the trees during the construction period.

7. No above ground development shall commence until tree replacement scheme concerning the five replacement trees to the boulevard /avenue has been submitted to and approved in writing by the Local Planning Authority. The scheme shall include details of: tree species; tree sizes (including the minimum height and circumference of stem at 1m from the ground level); plan indicating the location of the replacement trees; and, a timetable for tree planting.

Reason: To ensure the continuity of the amenity afforded by the boulevard /avenue in accordance with policies EN12 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

8. No development shall take place, including any works of excavation or demolition, until a Construction Method Statement has been submitted to, and approved in writing by, the local planning authority. The approved Statement shall be adhered to throughout the construction period. The Statement shall include:

i. construction activities on site shall be undertaken between the hours of 8am-6pm Monday to Friday and 9am-2pm Saturday only (no working on Sundays or Bank Holidays). Quieter activities which are carried out inside buildings such as electrical works, plumbing and plastering may take place outside of agreed working times so long as they do not result in significant disturbance to neighbouring occupiers;

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ii. details concerning how access to the residential car parking associated with Imperial Point and Sovereign Points will be achieved during construction;
iii. the spaces for and management of the parking of site operatives and visitors vehicles;
iv. the storage and management of plant and materials (including loading and unloading activities);
v. the erection and maintenance of any security hoardings including decorative displays and facilities for public viewing, where appropriate;
vi. measures to prevent the deposition of dirt on the public highway;
vii. measures to control the emission of dust and dirt during demolition/construction;
viii. a scheme for recycling/disposing of waste resulting from demolition/construction works;
ix. measures to minimise disturbance to any neighbouring occupiers from noise and vibration, including from any piling activity;
x. measures to prevent the pollution of watercourses; and
xi. a community engagement strategy which explains how local neighbours will be kept updated on the construction process, key milestones, and how they can report to the site manager or other appropriate representative of the developer, instances of unneighbourly behaviour from construction operatives. The statement shall also detail the steps that will be taken when unneighbourly behaviour has been reported. A log of all reported instances shall be kept on record and made available for inspection by the local a planning authority upon request.

Reason: In the interests of the amenity of neighbours in accordance with policies DES7 and EN17 of the Salford Unitary Development Plan and the NPPF.

Reason for pre-commencement condition: Any works on site could harm the amenity of neighbouring occupiers if not properly managed so details of the matters set out above must be submitted and agreed in advance of works starting.

9. No above ground development shall commence until a public realm management strategy has been submitted to and agreed in writing with the Local Planning Authority. This strategy shall include the following:

i. methods to distinguish and/or notify pedestrians of a surface shared with vehicles;
ii. full details of the drop-off / pick-up point including turning facility and access to residential parking;
iii. methods to prevent unauthorised access being gained to pedestrian areas (including shared surfaces) by vehicles; and,
iv. how a community liaison group will be established and managed which shall include details of the frequency of meetings, who will chair the meetings, who will be invited, how meeting notes and actions will be circulated and reviewed and how the local planning authority will be informed of progress and actions.

The approved strategy shall be implemented prior to the redeveloped units first being brought into operation and retained and maintained thereafter.

Reason: To ensure the safe movement of pedestrians and other road users in this area accordance with Saved Policies DES 2, DES 7, DES 10 and A2 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

10. The vehicle parking, servicing and other vehicular access arrangements shown on the approved plans to serve the development hereby permitted shall be made available for use prior to the development being brought into use (or in accordance with a phasing plan which shall first be agreed in writing with the local planning authority) and shall be retained thereafter for their intended purpose.

Reason: In the interest of highway safety and the free flow of traffic and in accordance with policies A2, A8 and A10 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

11. Notwithstanding the details shown on the drawings hereby approved, details of secure cycle parking shall be submitted to and approved in writing by the Local Planning Authority. The approved cycle

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parking shall be implemented and made available for its intended use prior to the occupation of the development hereby approved and shall be retained thereafter.

Reason: To encourage more sustainable modes of travel in accordance with policies ST14, A2 and A10 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

12. The development hereby approved shall be carried out in accordance with the recommended flood mitigation strategies made within the Flood Risk Assessment (Revision P3), writen by BWB and dated 24th July 2018.

Reason: To ensure a satisfactory method of surface water disposal to reduce the risk of flooding elsewhere in accordance with policy EN19 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

13. Any externally mounted plant and equipment (with the exception of plant required for emergency situations such as standby generators, smoke extract equipment etc.) associated with the development shall be designed so as not to exceed the following;

Location	Noise Rating Limit, dB LAr	
	Daytime (07:00 - 23:00)	24-Hour
Southern Façade of Imperial Point	43	43
Northern Façade of Imperial Point	39	37
Sovereign Point	39	37

Noise rating levels shall be calculated in accordance with BS 4142: 2014 with all plant operating simultaneously and corrections applied for any plant emitting noise of a tonal or irregular quality.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

14. The façade doors to the waterside frontage (southern façade) within the Lowry Outlet Mall shall be closed after 23:00 on any day.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

15. The external dining/seating area to the waterside frontage (southern façade) of the Lowry Outlet Mall shall be closed after 23:00 on any day.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

16. The combined noise levels from any music or amplified sound, including tannoy systems must not exceed the noise levels shown in the table below.

Location	Noise Limit, dB $L_{Aeq,\ 1h}$
	24 hour
Southern Façade of Imperial Point	44
Northern Façade of Imperial Point	44
Sovereign Point	41

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

17. Prior to the first occupation of the redeveloped units, a noise management plan to control noise within the external seating areas to the waterside frontage (southern façade) of the Lowry Outlet Mall shall be submitted to and agreed in writing by the Local Planning Authority. This plan shall include details of but not be limited to:

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- Hours of use
- Staff training (to ensure awareness of noise and neighbours)
- Protocol for dealing with "noisy customers" (e.g. shouting etc., management of large groups - hen nights / stag parties etc)
- How will noise levels be proactively monitored (e.g. staff on the floor?)
- Complaints handling procedures

The plan shall be implemented in full when the units are first opened to the public and shall be applied thereafter.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

18. Prior to the commencement of development (except for demolition and enabling works) a Phase 2 Site Investigation report shall be submitted to and approved in writing by the Local Planning Authority. The investigation shall address the nature, degree and distribution of land contamination on site and shall include an identification and assessment of the risk to receptors focusing primarily on risks to human health, groundwater and the wider environment.

Should unacceptable risks be identified the applicant shall also submit and agree with the Local Planning Authority in writing a contaminated land remediation strategy prior to commencement of development. The development shall thereafter be carried out in full accordance with the duly approved remediation strategy or such varied remediation strategy as may be agreed in writing with the Local Planning Authority.

Reason: To prevent pollution of the water environment and to ensure the safe development of the site in the interests of the amenity of future occupiers in accordance with Policy EN17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: Any works on site could affect any contamination which may be present and hinder the effective remediation of any contamination causing a risk to the health of future occupiers and harm to the environment, hence the initial investigation must be carried out before works commence.

19. Pursuant to condition 18 and prior to first use or occupation a verification report, which validates that all remedial works undertaken on site were completed in accordance with those agreed with the Local Planning Authority, shall be submitted to and approved in writing by the Local Planning Authority.

Reason: To prevent pollution of the water environment and to ensure the safe development of the site in the interests of the amenity of future occupiers in accordance with Policy EN17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

Statement of conformity with Article 35 of The Town and Country Planning (Development Management Procedure) (England) Order 2015

The Local Planning Authority worked positively and proactively with the applicant to identify various solutions during the application process to ensure that the proposal comprised sustainable development and would improve the economic, social and environmental conditions of the area and would accord with the development plan. These were incorporated into the scheme and/or have been secured by planning condition. The Local Planning Authority has therefore implemented the requirement in Paragraph 38 of the NPPF.

Notes to Applicant:

1. This permission only authorises the carrying out of development which is entirely in accordance with the approved plans and other details submitted. In the event of any intended amendments to these details

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and plans, including the siting of the development in relation to site boundaries or adjacent properties, the developer must first contact the Development Management Section before any development is commenced for advice regarding the necessity to obtain further permission.

2. This Notice **does not** constitute an approval under the Building Regulations 2000 and you should contact the Local Authority Building Control Section for further information. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

3. Please note that any new building(s) or any existing building(s) being converted into separate dwellings (including apartments etc.) or businesses will legally require an official postal address. This is enforceable under the Public Health Act 1925. The Developer should contact Salford City Council who will process the postal addressing. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

4. This Notice **does not** constitute an approval of the highway layout for adoption in accordance with the Highways Act 1980 and you should contact the Local Authority Engineering Design Section for further information regarding the requirements for highway adoption. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

5. Useful contacts:

Dilapidation Survey:
o Developer shall contact John Horrocks/Pam Docksey to arrange a full dilapidation/Condition Survey of all adopted highways surrounding the site prior to works commencing on site. Tel: 0161 603 4046/4006

Highway Permits/Licensing:
o Applications for all forms of highway permits/licenses shall be made in advanced of any works being undertaken on the adopted highway Note: NO boundary fencing shall be erected or positioned on any part of the adopted highway with first seeking the relevant permits/licenses from the Local Highway Authority Tel: 0161 603 4046/4006

General Highway Information:
o Requests for general information regarding the adopted highway network shall be directed to the Local Highway Authority - John Horrocks- 0161 603 4046/4006

S278 and S38 Works
o The Developer shall contact Neil Ashmall to arrange for the S278 element of the development. Neil Ashmall 0161 779 4883.
o The Developer shall contact John Proctor to arrange for the S38 element of the development. John Proctor: 0161 779 4894.

Traffic Management:
o The Developer shall contact Rob Owen for the Traffic Management element of the development. Rob Owen - Tel: 0161 779 4848.

Salford City Council would like to encourage all residents and businesses to help make the City a better place to live and work by transforming hard grey areas into living, planted places that enrich lives. The Royal Horticultural Society is running a campaign to "Green Grey Britain" which the City Council fully supports. We are asking all applicants to view the RHS website at www.rhs.org.uk and to pledge support for the campaign through the implementation of landscaping schemes/proposals which form part of planning permissions granted by the City Council.

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Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse planning permission for the proposed development or to grant it subject to conditions, then you can appeal to the First Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice except where one of the following applies:
    - If this is a decision to refuse planning permission for which an enforcement notice has been served for the same or substantially the same land and development either within 2 years prior to the date on which the application was submitted or before the application was determined, if you want to appeal against your local authority's decision then you must do so within 28 days of the date of this notice; or
    - If this is a decision to refuse planning permission and an enforcement notice is served for the same or substantially the same land and development after the date of this notice, if you want to appeal against your local authority's decision then you must do so within 28 days from the date the enforcement notice is served, unless the effect would be to extend the period beyond the usual time limit for cases not involving an enforcement notice (i.e. 6 months of the date of this notice).
- Appeals must be made using a form which you can get from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol, BS1 6PN or online at www.planningportal.gov.uk/pcs.
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.
- In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him.

Purchase notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the Council in whose area the land is situated. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act

Compensation

In certain circumstances compensation may be claimed from the Local Planning Authority if permission is refused or granted subject to conditions by the Secretary of State on appeal or on reference of the application to him/her.

These circumstances are set out in section 114 and related provisions of the Town and Country Planning Act 1990.

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SCHEDULE 3

THE OWNER'S GENERAL COVENANTS

The Owner hereby covenant with the Council as follows

1 To notify the Council in writing at least 20 (twenty) Working Days prior to the anticipated date of the Commencement of Development,

2 **REPLACEMENT OFF-SITE TREE PLANTING CONTRIBUTION ("PLANTING CONTRIBUTION")**

On or before the date of this deed to pay to the Council the sum of £36,400 (thirty six thousand four hundred pounds) towards the cost of planting 104 (one hundred and four) semi-mature street trees, each having an 18-20 centimetres girth and being 5-6 metres in height, within Salford Quays and/or on Howards Street, Ordsall

3 **REPLACEMENT OF RETAINED TREE GRILLES CONTRIBUTION ("GRILLE CONTRIBUTION")**

On or before the date of this deed to pay to the Council the sum of £36,000 (thirty six thousand pounds) towards the cost of removing and replacing 75 (no) tree grilles around the trees to be retained along the boulevard adjacent to Central Bay as part of the Development, by specifically removing the 1 00 metre metal grille and the paved surround, laying a flat top kerb edging to the retained block paving and laying new 'ArborResin' (or similar resin bound stone) tree 'grille' on the existing substrate

SCHEDULE 4

The COUNCIL'S COVENANTS

The Council hereby covenants with the Owner as follows

1 Not to use any part of the Planting Contribution other than for the purposes for which it was paid (whether by the Council or another party) provided Development shall have Commenced

2 Not to use any part of the Grille Contribution other than for the purposes for which it was paid (whether by the Council or another party) provided Development shall have Commenced

3 At the written request of the Owner to provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed

4 That none of the projects or infrastructure items that the Contributions are funding or contributing to have been funded or contributed to by more than four other s 106 Agreements since 6 April 2010 and that the Council has reviewed its records and is satisfied that the Contributions are not in breach of the requirements of Regulation 123 of the Community Infrastructure Levy Regulations 2010

5 In the event that the Planning Permission is not implemented and on the written request of the Owner to do so the Council shall repay the Contributions to the Owner within 28 (twenty eight) Working Days of such request together with any interest accrued on the Contributions calculated from the date of this Agreement to the date of repayment

6 In the event that any part of the Contributions paid to the Council has not been spent by the Council within 10 (ten) years of the date on which the Contributions were paid to the Council the Council shall on the written request of the Owner repay to the Owner such unspent balance (excluding any such sums in respect of which though not yet expended the Council has contractually committed to expend) together with any interest accrued on that balance calculated from the date of payment to the Council to the date of repayment

7 The Council shall provide written details of any expenditure incurred by the Council using the Contributions within 20 Working Days of a written request to do so from the Owner

8 To issue the Planning Permission within 3 (three) Working Days of the date hereof

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THE COMMON SEAL of **THE COUNCIL OF THE CITY OF SALFORD** was affixed in the presence of:

AUTHORISED SIGNATORY

Signature: .....

Name (in block capitals): .....M. CARRUTHERS-WATT

EXECUTED as a **DEED** by **LOWRY OUTLET LIMITED**

acting by a director in the presence of a witness

DIRECTOR

Signature:

.....

Name (in block capitals): P. J. HOSKER

.....

WITNESS

Signature:

.....

Name (in block capitals):

.....BEVERLEY PHILLPOTTS.....

Witness address:

.....PEEL DOME INTU TRAFFORD CENTRE TRAFFORD CITY MANCHESTER M17 8PL

Witness occupation:

.....SOLICITOR.....